

Mehaben W/O Krushnakant Naranbhai ... vs Krishnakant Naranbhai Patel on 29 September, 2023

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C/MCA/1173/2023

ORDER DATED: 29/09/2023

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IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/MISC. CIVIL APPLICATION (FOR TRANSFER) NO. 1173 of 2023

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MEHABEN W/O KRUSHNAKANT NARANBHAI PATEL D/O RAJENBHAI
ISHWARBHAI PATEL
Versus
KRISHNAKANT NARANBHAI PATEL

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Appearance:

HARSHIT R PUROHIT(8385) for the Applicant(s) No. 1
MR MANTHAN K BHATT(6549) for the Applicant(s) No. 1
MR BHAVIN J SATWARA(3718) for the Opponent(s) No. 1

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CORAM:HONOURABLE MR. JUSTICE J. C. DOSHI

Date : 29/09/2023

ORAL ORDER

1. In this petition filed under section 24 of the Code of Civil Procedure, 1908, the petitioner has prayed to transfer Family Suit No. 164 of 2022 pending before the learned Family Court, Anand to learned Family Court, Vadodara inter alia on the ground of convenience.

2. The brief facts of the present case are as under:-

2.1 The petitioner got married to respondent on 3.5.2013 and out of the said wedlock, one son was born (at present aged about 8 years) . That the respondent husband was torturing, harassing and abusing the petitioner physically and mentally after the marriage. After the birth of her son Jay respondent enforced petitioner to stay in United Kingdom illegally with her in-law parents and in-law sister. The petitioner was tortured and harassed by respondent and his family in U.K. Therefore, the petitioner came back to India. However, after some time respondent exposed that he

was living illegally therefore, he NEUTRAL CITATION C/MCA/1173/2023 ORDER DATED: 29/09/2023 undefined was deported by UK Government. That after being deported to India, respondent never meet the petitioner and his son to his home and contrary, started harassing petitioner telephonically as to get her sign in divorce agreement. Thereafter, the respondent has filed impugned Family Suit No. 164 of 2022 u/s.

13(1) (ib) of the Hindu Marriage Act for divorce at Family Court, Anand on 8.10.2022. Being harassed with continuous torturing of respondent and as to protect herself and her son the petitioner has also filed one Criminal Misc. Application No. 484 of 2023 under Domestic Violence Act against the respondent and her in-laws before the learned Chief Judicial Magistrate Court, Vadodara. The petitioner's father died and the petitioner has no other person in house to take care the minor son and widow mother. The petitioner has no independent arrangement /vehicle to travel to Anand from Vadodara.

3. In background of above facts, the respondent has filed Family Suit No.164 of 2022 under Section 13(1)(ib) of the Hindu Marriage Act for divorce before the learned Family Court, Anand.

4. In view of above, the petitioner has approached this Court under section 24 of the Code of Civil Procedure seeking relief to transfer Family suit No. 164 of 2022 from learned Family Court, Anand to learned Family Court, Vadodara inter-alia on the ground that she is facing difficulty to attend proceedings at Family Court, Anand as she has to travel 50 kms. from Vadodara to Anand along with her minor son.

5. Mr. Bhavin Satwara, learned advocate for the respondent NEUTRAL CITATION C/MCA/1173/2023 ORDER DATED: 29/09/2023 undefined has no objection if the present application is allowed and transfer the Family Suit No. 164 of 2022 pending before the Family Court, Anand to learned Family Court, Vadodara.

6. Heard learned advocate Harshit Purohi for the petitioner and Mr. Bhavin Satwara, learned advocate for the respondent.

7. Pressing into service judgment in the case of Tejalben v/ s. Mihirbhai Bharatbhai Kothari [AIR 2016 SC 718], it is sought to be submitted by learned advocate for the petitioner that the petitioner is lady living in Vadodara along her mother at parental home. She is keeping minor son aged 08 years with her. It is also submitted that all other proceedings arising out of dispute between the parties are pending at different Courts at Vadodara but, Family Suit is pending at Family Court, Anand.

8. Learned advocate for the petitioner would submit that Vadodara is 50 kms. apart from Anand. On every date, the petitioner has to come from Vadodara to Anand which is quite inconvenience for the petitioner to attend the proceedings every time. Therefore, he would submit that the petitioner is urging to transfer Family Suit only on the ground of inconvenience she is facing. Learned advocate for the petitioner would further submit that in case Family Suit is transferred from Family Court, Anand to Family Court, Vadodara, the petitioner shall not seek expenses for transportation she had

borne for attending the proceedings. Upon such submissions, he requested to allow the petition.

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9. In the case of Sumita Singh v/s. Kumar Sanjay [AIR 2002 SC 396], the Apex Court has observed that wife's inconveniency must be given due importance while deciding transfer petition. It is to be noted that power under section 24 of the CPC is discretionary power. The Court may or may not exercise discretion. However, when such discretion is to be exercised it must be guided by settled principle of law. To be noted that the petitioner has sought relief only on the ground of inconvenience. Fairness of judicial proceedings is not questioned. No allegations of bias in the proceedings is levelled against Judicial Officers. Thus convenience as stated earlier must be considered more particularly in background of the fact that travelling from Vadodara to Anand is quite difficult as both cities apart 50 kms. It is difficult for the lady to attend proceedings at Family Court, Anand. One may also keep in mind that son is 8 years old. Thus, inconvenience which is pinpointed in the petition can be visualized and could be given importance as well.

10. In view of above peculiar facts and circumstances and for the foregoing reasons, this petition deserves consideration. Accordingly, the petition is allowed. Family Suit No.164 of 2022 pending at learned Family Court, Anand is hereby transferred to Family Court, Vadodara for disposal in accordance with law.

Direct service is permitted.

(J. C. DOSHI,J) BEENA SHAH